



File No.: EXP202405459

## RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On October 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against GRUAS IGNACI, S.L. (hereinafter, GRUAS IGNACI), through the agreement that is transcribed:

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### AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection against GRUAS IGNACI, S.L. with NIF B57144412 (hereinafter, GRUAS IGNACI) on March 19, 2024.

The facts brought to the attention of this authority are as follows:

The claimant states that, in order to collect a vehicle from the facilities of GRUAS IGNACI, they were asked to provide their identity document, which was photographed by the person who attended to them at that establishment using their personal mobile phone, without being informed about the processing of their data, and conditioning the delivery of the vehicle on this action, which they believe contravenes data protection regulations. They also point out that the facilities have a video surveillance system that lacks signs indicating a monitored area.

Along with the written complaint, the following documentation is provided:

- Copy of the invoice dated March 19, 2024, which includes: the name of the customer, NIF, address, insured, vehicle data, invoice concept, amount, payment method, GRUAS IGNACI stamp, and a signature.
- Copy of the document issued by GRUAS IGNACI dated March 19, 2024, with a scanned photograph of the claimant's ID and the following content: "Grúas Ignaci makes a photocopy of the ID of Mr. A.A.A., to demonstrate that he collects (...) as the authorized person of the vehicle (...)," as well as the GRUAS IGNACI stamp and a signature.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to GRUAS IGNACI for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on April 10, 2024, as stated in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On June 19, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity GRUAS IGNACI is a company established in the year (...), with a business volume of (...) € euros in the year (...).

### LEGAL GROUNDS

I

#### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

## II

### Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

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In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

## III

### Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is processing of personal data, since GRUAS IGNACI carries out, among other processes, the collection and storage of personal data of individuals such as name and surname, postal address, registration number, and photograph of the ID card.

GRUAS IGNACI carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

## IV

### Obligation Breached. Data Minimization

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

In this case, it is noted that GRUAS IGNACI took a photograph of the front of the claimant's ID card with the aim of demonstrating that the claimant is collecting the vehicle.

It should be clarified that Article 5.1(c) regarding the principle of minimization links the use of personal data to the necessity foreseen for the fulfillment of the purpose of the processing. According to this provision, personal data shall be "adequate, relevant and limited to what is necessary" for the purpose for which they were collected, so that if the intended objective could have been achieved without carrying out such processing, it should have been avoided. This is also established in Recital 39 of the GDPR, which states: "Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means."

Therefore, only data that is "adequate, relevant and not excessive in relation to the purpose for which it is obtained or processed" shall be processed. The categories of data selected for processing must be strictly necessary to achieve the stated objective, and the data controller must strictly limit the collection of data to that information that is directly related to the specific purpose being pursued.

The fact that a photograph was taken of the claimant's ID card could have constituted, without

prejudice to the outcome of the instruction of the procedure, an excessive processing of personal data, contrary to the principle of "data minimization" (Art. 5.1.c) GDPR), considering that the existing situation at that moment allowed for a less invasive data collection, being sufficient with mere display and, if applicable, notation.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to GRUAS IGNACI, S.L., for violation of the previously transcribed article.

V

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- "a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
- e) the failure to comply with a decision or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

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"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious infringements and will be subject to a three-year statute of limitations:

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;

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- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission causes to the affected party, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

Thus, the concurrence of the circumstance provided for in Article 83.2.b) is taken into account: “the intent or negligence in the infringement.” This is evident from the action of photographing the ID card of the claiming party with a personal mobile phone and without providing information about the data processing, which reflects a clearly negligent conduct. Furthermore, the fact of conditioning the delivery of the vehicle to this action without presumably properly informing the interested party demonstrates a lack of diligence in complying with data protection regulations, evidencing a lack of knowledge or concern about the legality of these actions.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of the company GRUAS IGNACI with a turnover of (...) € euros in the year (...) is considered, as a preliminary matter.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the

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instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions established in Article 5.1.c) of the GDPR, allows for an initial administrative fine of €3,000.00.

## VII

Obligation breached. Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

The GDPR, in its Article 32, requires data controllers to adopt the corresponding necessary technical and organizational security measures to ensure that processing is in compliance with current regulations, as well as to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data following the instructions of the controller.

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the data controller and the data processor to apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, determining those technical and organizational measures that are appropriate considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when evaluating the adequacy of the level of security, particular attention must be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm. On the other hand, Recital (74) of the GDPR states: "The responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons." Therefore, this principle applied to the collection of a client's data necessary for the activity requires that such processing must be carried out with technical and organizational methods that ensure the security and confidentiality of personal data.

In the present case, as can be inferred from the documents submitted along with the complaint, the photograph of the front side of the claimant's ID card would have been taken with the personal mobile phone of one of the employees of GRUAS IGNACI. This fact indicates, without prejudice to what may result from the instruction of the procedure, that the respondent has not adopted the appropriate security measures to prevent the capture of the image of a user's ID card by an employee of that entity.

Therefore, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to GRUAS IGNACI, S.L., for violation of the previously transcribed article.

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VIII

Classification of the infringement of Article 32 of the GDPR and qualification for the purposes of limitation

Article 83.4 of the GDPR classifies the violation of the following articles as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

- "a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;
- b) the obligations of certification bodies under Articles 42 and 43;
- c) the obligations of the supervisory authority under Article 41, paragraph 4."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purpose of the limitation period, Article 73 of the LOPDGDD establishes the following:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein will be considered serious and will prescribe after two years, particularly the following:

- f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

IX

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case,

effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the seriousness of the possible infringement, particularly regarding the consequences that its commission causes to the affected party, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

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The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of the company GRUAS IGNACI is considered, with a turnover of (...)€ euros in the year (...).

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for the initial setting of an administrative fine of 2,000.00 euros.

X

Unfulfilled obligation. Information to be provided when personal data is obtained from the data subject Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining this data, shall provide all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing,

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of their treatment, or to oppose the treatment, as well as the right to data portability;

- c) when the treatment is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the treatment based on the consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;

- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such treatment for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."



In the present case, from the documentation provided by the complainant, it is not evident that GRUAS IGNACI has provided the complainant with any information regarding the processing of their personal data as required by Article 13 of the GDPR at the time their personal data was collected for the vehicle retrieval.

This lack of information may result in the data subject losing control over their data and causing, among other consequences, a limitation on several rights of the complainant, such as those related to access, rectification, or deletion of their personal data, as they do not possess the necessary information to exercise them (such as the identity and details of the controller).

Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to GRUAS IGNACI, S.L., for violation of the previously transcribed article.

XI

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of limitation

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

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- "a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
- e) the failure to comply with a decision or a temporary or definitive limitation of processing or the suspension of data flows by the supervisory authority under Article 58(2), or the failure to provide access in violation of Article 58(1)."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purpose of the limitation period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

XII

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58(2)(a) to (h) and (j). In deciding on the imposition of an administrative fine and its amount in each individual case, the

following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;
- b) the intentionality or negligence in the infringement;

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- c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the severity of the possible infringement, especially regarding the consequences that its commission causes to the affected party, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure

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these principles, it is considered, as a preliminary matter, the condition of the company GRUAS IGNACI with a turnover of (...)€ euros in the year (...).

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the initial setting of an administrative fine of 3,000.00 euros.

### XIII

Unfulfilled obligation. Information to be provided when personal data is obtained from the data subject Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent in

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any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that

other purpose and any additional relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at least, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty shall be deemed fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. In the event that the monitored space has several accesses, such a sign indicating the video surveillance area must be available at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

In this case, GRUAS IGNACI would have installed video surveillance cameras in the establishment, lacking the informative sign of the video surveillance area required by Article 13 of the GDPR.

Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to GRUAS IGNACI, S.L., for violation of the previously transcribed article.

#### XIV

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of data subjects under Articles 12 to 22;

c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;

d) any obligation under the law of the Member States adopted pursuant to Chapter IX;

e) the failure to comply with a resolution or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that are

considered very serious shall prescribe after three years."

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a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

XV

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

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"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continuous nature of the infringement.

- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, considering the severity of the possible infringement, especially regarding the consequences that its commission causes to the affected party, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. Thus, the circumstance provided for in Article 83.2 a) of the GDPR “Nature, gravity, and duration of the infringement” applies, as the lack of informative signs about video surveillance prevents the affected parties (including possible minors) from knowing that they are being recorded, the purpose of the processing, and who is responsible for it, and consequently, the possibility of exercising the rights provided for in personal data protection regulations, such as the rights of access, rectification, and deletion.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of the company GRUAS IGNACI with a turnover of (...)€ euros in the year (...) is considered, as a preliminary matter.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the initial setting of an administrative fine of 3,000.00 euros.

XVI

Corrective Measures

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If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c), Article 13 of the GDPR, and Article 32 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

This act establishes what the alleged infringement is and the facts that could lead to this possible violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, the resolution adopted may require GRUAS IGNACI to adopt the following measures:

- Demonstrate the adoption of appropriate measures to avoid capturing the image of clients' ID cards, within 2 months from the date of effectiveness of the resolution concluding this procedure.
- Demonstrate the effective application of appropriate technical and organizational measures to ensure the security in the processing of personal data of clients in accordance with Article 32 of the GDPR, within 2 months from the date of effectiveness of the resolution concluding this procedure.
- Demonstrate the provision of information to the affected parties as referred to in Article 13 of the GDPR, within 2 months from the date of effectiveness of the resolution concluding this procedure.
- Demonstrate the placement of surveillance signs, within 2 months from the date of effectiveness of the resolution concluding this procedure.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,  
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against GRUAS IGNACI, S.L., with NIF B57144412, for:

- the alleged infringement of Article 5.1.c) of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR for photographing the front of the ID card of the complainant.
- the alleged infringement of Article 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR for using a personal mobile phone to take a photograph of the ID card of the complainant.
- the alleged infringement of Article 13 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR for not providing the information to the data subject when collecting their personal data.
- the alleged infringement of Article 13 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR for lacking surveillance area signs.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of:

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- 3,000.00 euros for the infringement of Article 5.1.c) for failing to observe the principle of data minimization by capturing the image of the ID card of the claimant,
- 2,000.00 euros for the infringement of Article 32 for lacking the necessary technical and organizational security measures when using a personal mobile phone to take a photograph of the ID card of the claimant,
- 3,000.00 euros for the infringement of Article 13 for failing to provide information to the interested party,

- 3,000.00 euros for the infringement of Article 13 for not having signs indicating the monitored area. The total sum of these amounts is 11,000 euros.

FIFTH: NOTIFY this agreement to GRUAS IGNACI, S.L., with NIF B57144412, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 8,800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 8,800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for either of them, they must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction, indicating which of the two reductions they are opting for or if it is for both.

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In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (8,800.00 euros or 6,600.00 euros), they must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to them will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if they do not access them, their rejection will be recorded in the file, considering the procedure completed and continuing with the process. They are informed that they can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 26, 2024, GRUAS IGNACI proceeded to pay the sanction in the amount of 6,600.00 euros, making use of the two reductions provided for in the previously transcribed initiation



agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of the

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present Regulation, when appropriate, in a specific manner and within a specified timeframe...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is warranted.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

The percentage of reduction provided in this section may be increased by regulation."

III

### Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at €6,600.00, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, GRUAS IGNACI has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of €11,000.00.

After GRUAS IGNACI, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of €6,600.00.

The effectiveness of the aforementioned reductions is conditioned, in any case, upon the withdrawal or waiver of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202405459, in accordance with the provisions of Article 85 of the LPACAP.

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THIRD: TO ORDER GRUAS IGNACI, S.L. to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to GRUAS IGNACI, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be final in the administrative pathway and fully enforceable from the date of its notification. In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from

the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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